VUNGU RURAL DISTRICT COUNCIL

Vs

ZIMBABWE RURAL DISTRICT COUNCILS WORKERS' UNION

And

MAPURANGA GADAGA N.O

IN THE HIGH COURT OF ZIMBABWE.
NDLOVU J
BULAWAYO 01 APRIL & 04 MAY 2026

Rescission of Judgment Application.

E. Mubaiwa, for the applicant.
T.E. Mudzuri, for the 1st respondent.
No Appearance for the 2nd respondent

NDLOVU J: This is an application for rescission of a judgment in terms of *Rule 29(1) (a)* of the *High Court Rules 2021,* allegedly erroneously granted in the absence of the Applicant under **HCBC 1028/25.**

BACKGROUND

On 28 July 2025, the 1st Respondents secured an arbitral award against the Applicant for payment of monies in excess of US$250 000.00 in arrears of salaries and benefits. On 7 October 2025, the Applicant lodged an appeal against the award in the Labour Court under the cover of Case Number **LCMD 125/25.**

On 11 September 2025, the 1st Respondent proceeded to file, with this court, an application for registration of the said Arbitral award under **HCBC 1028/25.** The 1st Respondent successfully obtained a default judgment registering the Award on 25 November 2025, made available on 03 December 2025, and immediately caused a warrant of execution to be issued.

In the strength of the said default judgment, the 1st Respondent has since attached various assets of the Applicant in execution.

APPLICANT'S CASE

The Applicant argues that the order under **HCBC 1028/25** was sought and granted erroneously in that the proceedings were grossly irregular for the following reasons;

a. *The Application was not premised on any valid, reasonable notice on the Applicant to respond to it.*

b. *The Application, ex facie, gave the Applicant three (3) working days to respond, contrary to the ten (10) working days prescribed by the rules.*

c. *The short notice of 3 days given to the Applicant to respond to the Application effectively denied the Applicant the right to be heard, rendering the proceedings grossly irregular.*

d. *Whilst the application was filed in this court [High Court, Bulawayo], Notice was given to the Applicant to file its opposing papers in the High Court, Harare.*

Once the court finds that the main matter was irregular, the default judgment would therefore have been granted in error and can be set aside. The 1st Respondent deliberately filed defective proceedings and snatched judgment. It cannot, therefore, seek to blame the Applicant for not opposing such proceedings when it made it impossible for the Applicant to respond by giving it short notice.

The Applicant's properties critical to its operations have since been seized pursuant to the default order in issue. This has greatly prejudiced the Applicant, who has lost possession of the attached goods. The Applicant's operations have therefore been crippled.

RELIEF SOUGHT

1. *Application for rescission of default judgment be and is hereby granted*

2. *The default judgment granted against Applicant under HCBC1028/25 be and is hereby rescinded.*

3. *The applicant be and is hereby ordered to file its Notice of Opposition under HCBC 1028/25 within 10 days of its receipt of this order.*

4. *The 1st respondent shall pay the costs of suit on a punitive scale.*

1ST RESPONDENTS' CASE

The Respondents argued that the Applicant ignored service of the application and cannot be heard to say that the same was granted in error. There is no denial of the service of the application. The Applicant has not put forward an honest explanation of its default to this court. The Order was handed down on the 3rd of December 2025, after the Applicant had ignored the application filed in September 2025.

The points raised by the Applicant have no merit, as they are merely a complaint about the timelines provided for responding. The main application was a chamber application, and in a chamber application, one can amend the form as they deem fit.

The parties were linked to the matter on the IECMS. One would therefore not be affected by the court's location, as the IECMS accepts all pleadings as long as they are filed under the correct case number.

The Applicant has dismally failed to put the court into its confidence. There has been no address on the requirements for rescission of judgment, even on the prospects of success. The applicant has only provided a textbook outline of its grounds, which does not put the court in a better position to rescind its order. Moreover, the order is an administrative one; there is no allegation as to what might need to be opposed on the main matter. The Applicant has failed to present a proper case before the court.

This application is mala fide. It was made after the Applicant saw the writ of execution and not when they became aware of the order or upon service of the chamber application. This application should be dismissed with costs.

PRELIMINARY POINTS.

Applicant's Preliminary Points.

1. **DEFECTIVE OPPOSITION**

It is Applicant's submission that the opposition filed of record is fatally defective in that the affidavit is undated to show when the deponent actually appeared before the commissioner of

oaths. This is a fatal omission to render the entire opposition defective and void. The opposition must therefore be struck off the record, and the matter proceeds as unopposed.

Whilst the 1st Respondent's opposing affidavit bore a stamp by the Commissioner of Oaths, it is visibly not clear when James Gumbi, who swore to the affidavit, appeared before the Commissioner of Oaths. One cannot tell whether any date is inscribed on the affidavit. Neither this court nor the Applicant can tell when the affidavit was commissioned. Effectively, the affidavit is not dated. This omission has been held by this court to be fatal, rendering the affidavit defective. In the case of *Mike Mandishayika v Maria Sithole, HH 798/15***,** it was stated that:

> *"An affidavit is a written statement made on oath before a commissioner of oaths or other person authorised to administer oaths. The deponent to the statement must take the oath in the presence of the commissioner of oaths and must append his or her signature to the document in the presence of such commissioner. Equally, the commissioner must administer the oath in accordance with the law and thereafter must append his or her signature to the statement in the presence of the deponent. The commissioner must also endorse the date on which the oath was so administered. These acts must occur contemporaneously."*

This point *in limine* lacks merit. There is a date inscribed on the affidavit. The writing might be challenging to the eye, but the fact of the matter is that the affidavit is dated. The preliminary point is therefore dismissed.

2. ABSENCE OF RESOLUTION TO 1ST RESPONDENT'S OPPOSITION

The Applicant has argued that there is no resolution filed by the 1st Respondent to show that it has been authorised to oppose the present application or authorise the deponent to depose to the opposing affidavit. The absence of the said resolution means that there is no valid opposition to the present application. It is settled law that whenever the absence of a resolution is put in issue, the only cure is the production of such a resolution. The Supreme Court has affirmed this position in *Cuthbert Elkana Dube v Premier Service Medical Aid and Another SC73/19***.** In the absence of such a resolution, the opposition is fatally defective and must be struck off the record. The present application is therefore unopposed.

The authorities are clear. When called upon to produce a resolution, the challenged party must do so. It is not part of the law that one must produce such authority at a particular stage of the litigation, failure to which one is then barred.

My understanding is that it can be produced from the bar on the day of the hearing. We need to factor in the science of the IECMS. I take it that the resolution, when demanded, can be uploaded onto the system on the day of the hearing. 1st Respondent has since filed the resolution, rendering this point obsolete. In any case, there must be a distinction in the circumstances in which the demand for a resolution or authority is made in relation to litigation between parties. An application like the one we are seized with is what I will call a "by-product" litigation. It results from a prior lawsuit. The parties are already before the courts. The litigation is in motion. It is not yet finalised; it has simply taken a certain direction. To demand a resolution or authority to depose to an affidavit has one undesirable effect. It slows down the finalisation of matters. Technicalities should not be allowed to unnecessarily hinder the final resolution of a dispute. Courts are reluctant to exclude parties from seeking legal recourse on the basis that they have not complied with certain technicalities, lest, in the process, more fundamental rights may be infringed. The point is therefore dismissed.

1st Respondent's Points in limine.

AUTHORITY OF THE DEPONENT

A person appearing on behalf of a council, or a juristic personality in general, must be vested with competence to do so. A council, by its very nature, is a legal entity that can only competently operate via the sitting of a full Council. A full Council does not sit every day. Some entities, such as Local Government Councils, Central Government, Clubs, and the like, do not hold meetings every day. They convene periodically. It is then that they have the opportunity to learn from their executive personnel about events between the previous and current meetings; hence, Councillors tend to ratify some decisions made by Council employees. That is governance. Courts should not be seen to be frustrating such practical solutions. In this case, there is a resolution ratifying the actions complained of. The point should therefore fail.

DIRTY HANDS

It is not in dispute that under HCBC 1028/25, Applicant's assets were attached and were meant to be removed by the 2nd Respondent. The return of service by the 2nd Respondent shows that some items went missing. Those items are yet to be accounted for. No interpleader proceedings have been initiated to deal with this issue. According to the 1st Respondent, it appears, prima facie, that the Applicant has failed to account to the 2nd Respondent for the items. It is trite and noted that a return of service of the Sheriff is taken on face value to be correct and can only be challenged by positive evidence by the relevant party. *See Gundani v Kanyemba 1988 (1) ZLR 226. Cape Coast Exploration Limited v Scholtz & another 1933 AD 55.*

The 1st Respondent has argued that it remains, on a prima facie basis, that upon the execution of the order which the Applicant seeks to rescind, some items of the Applicant were hidden by it for reasons best known to it. The Applicant has not done anything to dispel this suspicion, and therefore, it must not be heard.

The onus is on the 1st Respondent to prove that the Applicant deliberately hid the items which were indicated as missing. Where there is insufficient evidence to show open defiance of the execution process, the court must not be quick to deny Applicant the right to be heard. I conclude by saying that the 1st Respondent has not established a basis upon which it can be concluded that it is the Applicant who hid the said motor vehicles. The point taken is therefore dismissed.

MATERIAL NON-DISCLOSURE

The applicant has not disclosed to this court that it has paid US$ 164,301.96 (One Hundred and Sixty-Four Thousand Three Hundred and One United States Dollars) towards the award amount.

It cannot be disputed herein that the fact that more than half of the amount in the award has been paid is of greatest importance to the matter. Ordinarily, the Applicant should place the court in a position to explain the payment and the context under which it was made. The court should not be placed in a position where it makes an order for rescission under these circumstances in the dark. It is settled law that a person who approaches the court for relief

ought to be candid with the court. Such an applicant ought to disclose all the material or important facts and refrain from suppressing facts within his knowledge.

In the circumstances of this case, however, I find the non-disclosure not material and should not be elevated to the point of disabling this matter before it is heard on the merits. The non-disclosure does not change the tenor of the Applicant's displeasure, and it is, as a result, dismissed for want of merit.

PEREMPTION / WAIVER

The fact that the Applicant has paid more than half of the award mentioned above is undisputed. The 1st Respondent argues that the Applicant cannot challenge a decision that it has complied with by paying half of the amount claimed. This point has since been pronounced upon by the Labour Court and is therefore *res judicata* and dismissed

ISSUE FOR DETERMINATION

Whether or not the applicant has managed, on a balance of probabilities, to make a case for rescission of judgment?

APPLICATION OF THE LAW TO THE FACTS

To succeed in this application, it must demonstrate that the order was erroneously sought and granted in its absence and that it is adversely affected by the judgment. The present application was made in terms of *Rule 29 (1) (a)* of the *High Court Rules (2021)*, which provides the following;

> *"The court or a judge may, in addition to any other powers it, he or she may have, on its own initiative or upon the application of any affected party, correct, rescind or vary-*
>
> *(a) an order or judgment erroneously sought or erroneously granted in the absence of any affected party thereby"*

The onus is on the applicant to prove that the judgment was entered in their absence.

The applicant must establish an error. Put differently, the question is "Had the Court been aware of certain things about the matter when it heard it, would it have granted the order it granted or not?" The strength of the applicant's case in the main matter does not and should not come for consideration at this stage. That argument has merit to the extent necessary.

The applicant must plead the reasons for his default in participating in the litigation or non-attendance at trial despite having been served with the initial process. It is basic that the reasons for non-participation be pleaded and evaluated in such an application to convince the court to take the extraordinary course of revisiting its judgment when ordinarily it should not by operation of the law

The Applicant argues that the order under HCBC1028/25 was sought and granted erroneously in that the proceedings were ***grossly irregular*** for the following reasons;

a*. No valid, reasonable notice was given.*

b*. Three (3) working days to respond, contrary to the ten (10) working days prescribed by the rules, were given, effectively denying the Applicant the right to be heard, rendering the proceedings grossly irregular.*

c*. The application was filed in Bulawayo, calling on the response to be filed in Harare.*

Once the court finds that ***the main matter was irregular***, the default judgment would therefore have been granted in error and can be set aside.

The applicant does not dispute that it was served with the application in September 2025. It saw the irregularities pertaining to the *dies inducie* and the seat of court, and chose to sit back and do nothing, leading to the default judgment being granted against it. This conduct by the Applicant happened when *Rule 43* of the *High Court Rules, 2021,* provides as follows:

43. Irregular proceedings

(1) A party to a cause in which an irregular step has been taken by the other party may apply to court to set it aside.

(2) An application in terms of sub-rule (1) shall be on notice to all parties specifying particulars of the irregularity or impropriety alleged, and may be made only if—

(a) the applicant has not himself or herself taken a further step in the cause with knowledge of the irregularity;

(b) the applicant has, within ten days of becoming aware of the step, by written notice afforded the other party the opportunity of removing the cause of complaint within ten days;

(c) the application is filed within twelve days after the expiry of the second period mentioned in paragraph (b) of this sub-rule.

(3) If at the hearing of such application the court is of the opinion that the proceeding or step is irregular or improper, it may set it aside in whole or in part, either as against all the parties or as against some of them, and grant leave to amend or make any such order as it considers fit.

(4) Until a party has complied with any order of court made against it in terms of this rule, it shall not take any further step in the cause, save to apply for an extension of time within which to comply with such order.

were at its disposal and did not utilise them.

One does not let litigation walk past him, choose to do nothing about it, and when a default judgment is granted against them, he then turns around on the arrival of the proverbial day of reckoning and seeks a rescission of that judgment. That is an abuse of the court process. Had the Judge known that the Applicant had opted to sit back and do nothing, as the Applicant did, I have no doubt that the Judge would still have granted a default judgment against the Applicant *in casu.*

DISPOSITION.

There was therefore no erroneous granting of the default judgment in this matter. The applicant defaulted, opposing the application. The order was granted about three months after the application was filed. There was ample time to confront whatever irregularities the Applicant took to have afflicted the application in the matter. Sitting back was not one of them. There having been no error committed in the granting of the Default Judgment, and by extension, there is nothing to rescind. The applicant has not, on the balance of probabilities, made a case for rescission of judgment. The application has no merit and is duly dismissed with costs.

ORDER,

The Application is hereby dismissed with costs.

NDLOVU J.

Chimwamurombe Legal Practice, applicant's legal practitioners
Lawman Law Chambers, 1st respondent's legal practitioners